

24SMCV02567 24SMCV02567

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TENTATIVE RULING

August 7, 2026

24SMCV02567 (Kousnetz v. McCaney,
et. al.)

RELEVANT BACKGROUND

On May 30, 2024,
plaintiff Savannah Kousnetz (Plaintiff) initiated this action against defendants
Patrick McCaney (Patrick); Jennifer McCaney (Jennifer); and a minor, B.M. (BM).
Plaintiff alleges five causes of action for negligence, intentional infliction
of emotional distress, negligent misrepresentation, intentional
misrepresentation, and negligent failure to warn.

On December 10, 2024,
Plaintiff served initial written discovery on Jennifer, including Requests for
Production of Documents, Set One (RFP). RFP number 7 seeks “any and all
documents reflecting [Defendant’s] children’s behavioral issues.” (Larsen Decl.
¶ 6, Ex. 2 (capitalization omitted).) Following multiple extensions, on March
26, 2025, Jennifer provided responses to RFP. (Id. ¶ 7, Ex. 3.) Jennifer
objected to RFP number 7 and directed Plaintiff to the family court’s sealing
order. (Id. Ex. 3; See Ex. 1.) On May 27, 2025, Defendant provided supplemental
responses to RFP. (Id. ¶ 8, Ex. 4.) On June 30, 2025, Plaintiff filed a motion
to compel Defendant’s further responses to RFP. (Id. ¶ 9.)

On August 4, 2025, the

Court held an IDC for Plaintiff's motion to compel Defendant's further responses to RFP. (Id. ¶ 10.)

On October 3, 2025, Defendant provided a privilege log for Defendant's supplemental responses to RFP. (Id. ¶ 11, Ex. 5.) On October 8, 2025, Defendant provided an amended privilege log. (Id. ¶ 12, Ex. 6.)

On December 9, 2025, the Court granted Plaintiff's Motion to Compel Further Responses to Requests for Production of Documents addressing RFP numbers 7 and 8. The Court's order: Defendant Jennifer McCaney's ("Defendant") objections were overruled, save for the confidentiality privilege of minor Defendant B.M.; Defendant was ordered to serve a supplemental response to Request for Production No. 7; and any responsive document withheld on confidentiality grounds was to be identified in a privilege log "with a specific description sufficient for counsel and the Court to determine the scope of the confidential information contained in the document." (Bencohen Decl., at ¶ 24, Ex. R.)

Jennifer served further supplemental responses and a privilege log on January 5, 2026. (Id. ¶ 15, Exs. 8 & 9.) The parties entered into a stipulation for protective order on December 12, 2025, and Counsel Emily Robinson was served with copies of Plaintiff's motions and the December Order, as required by the December Order. (Id. ¶ 16.)

INSTANT MOTION

On February 19, 2026, Plaintiff filed the instant motion for terminating, issue, evidentiary, and/or monetary sanctions (\$20,710.00) against Jennifer.

DISCUSSION

Terminating Sanctions

California discovery law authorizes a range of penalties for conduct amounting to misuse of the discovery process, including terminating sanctions. (Code Civ. Proc., § 2023.030.) Misuses of the discovery process include the following:

“(d) Failing to respond or to submit to an authorized method of discovery. [¶] (e) Making, without substantial justification, an unmeritorious objection to discovery. [¶] (f) Making an evasive response to discovery. [¶] (g) Disobeying a court order to provide discovery.” (Id., § 2023.010.) Terminating sanctions may take the form of “[a]n order rendering a judgment by default against [the offending] party.” (Id., § 2023.030, subd. (d)(4).)

“A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279–280.) Courts have properly imposed terminating sanctions when parties have willfully disobeyed one or more discovery orders (Los Defensores, Inc. v. Gomez (2014) 223 Cal.App.4th 377, 390, review denied (Apr. 16, 2014).) In deciding whether to impose a terminating sanction, the trial court is to consider the totality of the circumstances: the “conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.” (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.)

Issue Sanctions

The court may order that designated facts shall be taken as established by the party adversely affected by the discovery misuse or it may prohibit the party who committed such misuse from supporting or opposing designated claims or defenses. (Code Civ. Proc. § 2023.030(b); NewLife Sciences, LLC v. Weinstock (2011) 197 Cal.App.4th 676, 686-687; See e.g., Juarez v. Boy Scouts of America, Inc. (2000) 8 Cal.App.4th 377, 387.)

Evidence Sanctions

The court may also prohibit the party who disobeyed the court order from introducing designated matters in evidence. (Code Civ. Proc. § 2023.030(c); See, e.g. Waicis v. Sup.Ct. (Schwartz) (1990) 226 Cal.App.3d 283, 287.) But “sweeping evidentiary conclusions” are improper when they provide a windfall by relieving a party of the burden to prove a theory of liability. (Rutledge v. Hewlett-Packard Co. (2015) 238 Cal.App.4th 1164, 1194.)

Monetary Sanctions

Monetary sanctions may be imposed “ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct...unless [the Court] finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civ. Proc., § 2030.030, subd. (a).)

Here, Plaintiff argues that terminating, issue, evidentiary, and/or monetary sanctions are appropriate on the grounds that Jennifer has not complied with her discovery obligations, including this Court's December 9, 2025, Order, to produce documents reflecting Defendant's children's documented behavioral conditions, issues, and problems that posed a danger to Plaintiff. (See Bencohen Decl., at ¶ 24, Ex. R.)

In opposition, Jennifer argues that she is subject to a sealing and confidentiality order in her family-law matter and that she cannot be punished for complying with the order. (Larsen Decl. ¶ 4, Ex. 1 [December 5, 2022 family court sealing and confidentiality order].)

In reply, Plaintiff argues that Jennifer's privilege log solely references her Ex Parte Application, which cannot be considered one of her children's medical, psychological, or educational records. Plaintiff also contends that, if responsive records are not produced, they must be specifically identified in the privilege log with the legal basis as to why they cannot be produced.

The Court finds that monetary sanctions in a reduced amount are proper at this time. The Court does not find terminating, issue, or evidentiary sanctions to be appropriate.

The Court finds nothing in the Family Law Court's order that would preclude plaintiff from producing the requested documents, especially not pursuant to a protective order. (Larsen

Decl. ¶ 4, Ex. 1.) But the Court finds monetary sanctions to be appropriate at this time rather than the other sanctions requested by Plaintiff because there is not a sufficient history of Jennifer's disregarding the Court's orders to warrant such sanctions and because the Court has not previously imposed lesser sanctions that have been proven insufficient.

As for the amount of monetary sanctions requested, the Court finds that \$20,710.00 is not reasonable. Of the \$20,710.00 requested, only \$4,960 represents attorney's fees. (See Bencohen Decl., at ¶¶ 39–47 [14 hours at \$350/hr. [10 hours on motion; 3 hours reviewing opposition and drafting reply; 1 hour attending hearing; \$60 filing fee].) The remainder of the fees requested by Plaintiff is based on "a daily monetary sanction of \$350 against Defendant Jennifer McCaney for each day she failed to search for responsive documents, calculated from the date Defendant was ordered to provide responsive documents—January 5, 2026—to the date that this motion was made—February 19, 2026...[pursuant to] *Padron v. Watchtower Bible & Tract Society of New York, Inc.* (2017) 16 Cal.App.5th 1245" (Id. ¶ 45.) The Court does not find this appropriate and declines to impose such sanctions.

Accordingly, Plaintiff's motion is

GRANTED, IN PART, and DENIED, IN PART. Plaintiff's request for monetary sanctions is granted in the reduced amount of \$4,960. Plaintiff's request for terminating, issue, and evidentiary sanctions is denied.